A home was left behind. Where do we start?

If you're reading this, a parent or someone close to you has died and a home in Florida is part of what they left. Not every question needs an answer this week. This checklist separates what can't wait from what can.

It covers the home, not the law. Who has authority to act, and whether Florida homestead rules apply, are questions for a probate attorney. Where a step depends on that answer, the checklist says so.

STEP 1 · THE FIRST 30 DAYS

Protect the home

- ☐ **Secure it.** Check every door, window and garage. Note who has keys, and change the locks if you can't account for them.
- ☐ **Call the insurance carrier.** A death or an empty home can change what the policy covers. Ask what they require for a vacant home, rather than assuming coverage carries on unchanged.
- ☐ **Keep the power and water on.** In Florida the air conditioning is what keeps mold out. Set it around 78° rather than off.
- ☐ **Forward the mail** and stop deliveries, so the home doesn't look empty.
- ☐ **Set a visit schedule.** Someone walks through every week or two: leaks, the AC, pests, signs of entry. Pool and lawn care keep going.
- ☐ **Photograph every room before anything is moved.** The contents may belong to the estate, so nothing is removed, donated or thrown out until the attorney says who decides.
- ☐ **Keep receipts** for anything you pay to protect the home. Whether you're repaid is a question for the attorney.

STEP 2 · WITHIN THE FIRST FEW MONTHS

Find out who can make decisions

A family can agree on what should happen to the home long before anyone has the legal authority to do it. In Florida that authority usually comes from the court, through probate.

- [ ] **Find the will**, any trust, and the deed to the home.
- [ ] **Order several certified death certificates.** The attorney, the title company, lenders and insurers each ask for one.
- [ ] **Talk with a Florida probate attorney.** Bring the will, the deed, the mortgage statement and a list of family members.
- [ ] **Ask whether the home is homestead.** In Florida that word does more than lower property taxes. It can decide who receives the home, whatever the will says.
- [ ] **Ask which path the estate is on.** Summary administration, for smaller estates or when the owner died more than two years ago, can finish in weeks to months. Formal administration more commonly runs six to twelve months.
- [ ] **Keep the mortgage and the property taxes current** where you can, and let the lender know about the death.
- [ ] **Call the county property appraiser.** The owner's homestead exemption may not carry over to whoever inherits, which can change next year's tax bill.

Taxes to ask your CPA about

What the home was worth on the date of death can matter for income tax when it's sold later. Ask your CPA whether you need a date-of-death appraisal, and keep a copy of it.

NOTES · NAMES AND NUMBERS

Sell, keep or rent?

The right answer is rarely about price alone. It weighs what the home is worth today, what it needs, what it costs to carry each month, and what the family wants. Sometimes the answer is to wait.

Sell it

Turns the home into money that can be divided. The attorney confirms who signs and whether the court has to approve. The real decision is usually as-is or after repairs, and that depends on what the repairs would return.

Keep it

One heir takes the home, often buying out the others. Ask the attorney and CPA how title should change hands, and who carries the mortgage, insurance and taxes from here.

Rent it

Keeps the home and brings in income, and makes someone a landlord: tenants, repairs, insurance and accounting. The attorney confirms the estate can sign a lease.



A walk-through, before anyone decides

Once the attorney confirms who can authorize it, I can walk through the home and tell you what it's likely worth as it stands, what work would pay for itself, and what each option involves. No decision is needed to ask.

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General information about homes in Florida probate. It is not legal, tax or financial advice, and reading it does not create a professional relationship. Questions about a specific estate belong with a probate attorney.